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LAW-523: JURISPRUDENCE (PAPER – I) – 3RD SEMESTER (SYLLABUS)

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DETAILED NOTES AND EXPLANATION

✓ Definition and Meaning of Jurisprudence:

◆ Meaning

The term “**Jurisprudence**” is derived from the **Latin words**:

- “*Juris*” meaning **law**, and
- “*Prudentia*” meaning **knowledge or skill**.

Hence, **Jurisprudence** literally means “**knowledge of law**” or “**science of law.**”

It is the **study of fundamental principles of law**, its **nature, sources, and purpose**.

◆ Nature of Jurisprudence

Jurisprudence is not limited to any particular branch of law.

It deals with the **basic concepts** such as:

- Rights and duties
- Ownership and possession
- Legal personality
- Liability
- Justice
- Relationship between law and society

Thus, jurisprudence is often called the “**philosophy of law**” or the “**science of legal principles.**”

◆ Definitions by Eminent Jurists

1. Ulpian (Roman Jurist):

“Jurisprudence is the knowledge of things, divine and human, the science of the just and the unjust.”

– *Oldest and broadest definition; connects law with morality and justice.*

2. John Austin:

“Jurisprudence is the philosophy of positive law.”

– *He focused only on law as laid down by the sovereign (legal positivism).*

3. Salmond:

“Jurisprudence is the science of the first principles of civil law.”

– *He studied legal concepts like rights, duties, ownership, etc.*

4. Keeton:

“Jurisprudence is the study and systematic arrangement of the general principles of law.”

– *Emphasizes law as an organized system.*

5. Roscoe Pound:

“Jurisprudence is the science of law, using law as a means of social control.”

– *Focuses on law’s social purpose and justice.*

6. Holland:

“Jurisprudence is the formal science of positive law.”

– *Law is to be studied in its structure and form, not moral aspects.*

◆ Purpose / Importance

1. Develops a deeper understanding of legal concepts.
2. Helps in interpretation of laws and statutes.
3. Builds foundation for legal reasoning.
4. Aids in law reform and social justice.
5. Bridges gap between law and morality.

◆ Conclusion

Jurisprudence is the **intellectual foundation of legal study.**

It helps us understand **what law is, what it ought to be, and how it functions in society.**

Every legal system rest on the principles explained through jurisprudence.

Utility and Scope of Jurisprudence

◆ Introduction

Jurisprudence, as the **philosophy or science of law**, seeks to explain the **nature, purpose, and function of law** in human society.

It is not confined to any specific branch of law but deals with the **general principles underlying all legal systems.**

To understand its true importance, we must study both its **scope**—the range of its study—and its **utility**—its usefulness in the legal field and society at large.

I. Scope of Jurisprudence

The **scope** of jurisprudence refers to the **range of subjects and problems** it deals with.

It is not limited to the study of “law as it is,” but also includes **law as it ought to be.**

The scope of jurisprudence has expanded over time from a narrow analytical study to a broad socio-legal and philosophical field.

◆ 1. Analytical or Legal Positivist Approach

This branch studies **law as it exists in a given legal system**, without considering moral or ethical aspects.

It is associated with **John Austin**, who defined jurisprudence as "*the philosophy of positive law.*"

Under this approach, jurisprudence focuses on:

- Structure of law
- Relationship between law and sovereign
- Legal rights, duties, and sanctions

Example: The study of how laws are made, interpreted, and applied by courts.

♦ 2. Historical Approach

This school was developed by **Friedrich Karl von Savigny**.

It emphasizes that **law is not created by an individual or sovereign**, but is the **result of historical development of society and its customs**.

Thus, jurisprudence studies:

- Evolution of legal systems
- Influence of culture and traditions
- Gradual transformation of customs into law

This approach widened the scope of jurisprudence by linking law with **history and social evolution**.

♦ 3. Sociological Approach

According to **Roscoe Pound**, law must be viewed as a **social institution** designed to meet the needs of people.

He described law as a **tool of social engineering**—an instrument to balance individual interests with social welfare.

Therefore, jurisprudence includes:

- Study of law in action (not just law in books)
- Impact of law on society
- Role of law in promoting social justice and order

This approach broadened the scope of jurisprudence towards **social justice and legal reforms**.

♦ 4. Philosophical or Ethical Approach

This branch examines **law in relation to moral values, justice, and ethics**.

It seeks to answer questions like:

- What is justice?
- What is the moral foundation of law?
- Should law reflect morality?

Jurists like **Aristotle, Kant, and H.L.A. Hart** contributed to this view.

This gives jurisprudence a deep philosophical dimension beyond the mere technical rules.

♦ 5. Comparative and International Dimension

In modern times, the scope of jurisprudence has expanded to include:

- **Comparative study** of different legal systems (e.g., Common Law and Civil Law)
- **International Law and Human Rights** principles
- Interaction between **municipal law and global norms**

Hence, jurisprudence is no longer confined to national boundaries; it has become **universal in character**.

II. Utility of Jurisprudence

The **utility** of jurisprudence refers to its **practical importance and value** in the legal field, governance, and society. Although it is theoretical in nature, its contribution to the development of law and legal thought is immense.

◆ 1. Helps in Understanding Legal Concepts

Jurisprudence helps lawyers, judges, and students understand abstract legal concepts like:

- Rights and duties
- Ownership and possession
- Liability, obligation, and legal personality

These concepts form the **foundation of all laws** and are essential for legal reasoning and interpretation.

◆ 2. Assists in Legal Interpretation

Judges often rely on jurisprudential principles when statutes are **vague or silent**.

For example, the doctrine of natural justice, equity, and reasonableness are all derived from jurisprudential thought.

Thus, it assists the judiciary in **interpreting and applying laws justly**.

◆ 3. Foundation for Law-making and Reforms

Legislators use jurisprudential studies to understand the **social needs and moral values** of society before enacting new laws.

For example:

- The evolution of human rights law
- The abolition of discriminatory practices
- The introduction of welfare legislation

All are rooted in jurisprudential ideas about **justice, equality, and liberty**

◆ 4. Promotes Legal Research and Comparative Study

Jurisprudence provides tools for **analysing and comparing legal systems**, helping scholars and lawmakers learn from other countries' experiences.

This comparative study leads to **uniformity, modernization, and improvement of laws**.

◆ 5. Bridges Law and Society

It helps in understanding the **relationship between law and social behaviour**.

By analysing how laws affect people's lives, jurisprudence ensures that legal rules serve **public welfare** rather than mere technical compliance.

◆ 6. Develops Critical Thinking and Legal Reasoning

For law students and professionals, jurisprudence trains the mind to **think logically and critically**.

It enhances their ability to:

- Interpret statutes
- Argue cases effectively
- Find justice-oriented solutions

Thus, it forms the **intellectual backbone of the legal profession**.

◆ 7. Guides Judicial Decisions

In the absence of clear statutory provisions, judges often rely on **jurisprudential theories** to deliver justice.

For example:

- Principles of **equity and natural justice** are jurisprudential in origin.
- The **"reasonableness" test** in administrative and constitutional law comes from jurisprudence.

Hence, it plays a vital role in shaping **judicial philosophy**.

♦ 8. Ensures Harmony Between Law and Morality

Jurisprudence emphasizes that **law without justice or morality loses legitimacy**.

By maintaining this harmony, it ensures that the legal system remains **ethical, fair, and socially acceptable**.

III. Conclusion

In conclusion, the **scope of jurisprudence** is vast and ever-expanding—from analytical study of legal concepts to philosophical, historical, and sociological analyses of law.

Its **utility** lies in its ability to:

- Clarify legal concepts,
- Guide judicial interpretation,
- Inspire law reforms, and
- Strengthen the bond between law and society.

Thus, jurisprudence is not a mere academic discipline; it is the **soul of legal science** and the **foundation of all legal development**.

Relationship between Law and Morality

♦ Introduction

Law and morality are two fundamental instruments that regulate human behaviour and maintain order in society.

Both seek to distinguish **right from wrong**, but they do so in **different ways and with different authorities**.

While **law** is a set of rules **enforced by the State**, **morality** consists of the rules of **right conduct accepted by society**.

They are closely related and often overlap, yet they remain distinct in nature, source, and sanction.

The relationship between the two has been a matter of deep philosophical debate among jurists from ancient times to the modern era.

I. Meaning and Nature

♦ Law

Law may be defined as the **body of rules recognized and enforced by the State**.

It prescribes what a person **must or must not do**, and violation of law attracts **legal sanctions or penalties**.

➡ According to John Austin:

“Law is the command of the sovereign backed by sanctions.”

Hence, law derives its authority from the **State** and is **enforceable by courts**.

♦ Morality

Morality refers to the **principles of right and wrong conduct** accepted by society, religion, or conscience.

It is not enforced by any legal authority but by **social pressure, ethics, and one’s own conscience**.

➡ According to Kant:

“Morality is the law of our own reason.”

It appeals to the **inner sense of duty and goodness**.

Thus, morality has a **spiritual or ethical** foundation, while law has a **political and institutional** foundation.

II. Points of Difference Between Law and Morality

Basis	Law	Morality
Source	Made and recognized by the State	Originates from conscience, religion, or social customs
Sanction	Enforced by courts through punishment	Enforced by public opinion or conscience
Nature	Objective and specific	Subjective and variable
Scope	Regulates external conduct only	Regulates both inner motives and external acts

Basis	Law	Morality
Flexibility	More rigid and formal	More flexible and informal
Object	To maintain order and justice	To promote goodness and virtue

Despite these differences, both are **interdependent and complementary**.

III. Relationship Between Law and Morality

Though distinct, law and morality are **closely connected**.

Historically, **law evolved out of moral norms**, and even today, **moral values influence legal systems**.

◆ 1. Law Based on Morality

In the early stages of human civilization, **law and morality were identical**.

Most legal rules were simply expressions of moral ideas.

For example:

- Laws against theft, murder, and perjury reflect moral principles.
- Concepts like justice, fairness, and good faith have moral origins.

Thus, **moral ideas serve as the foundation of legal rules**.

◆ 2. Law Influenced by Changing Morality

Morality evolves with social progress, and law must adapt to these changes.

For example:

- Earlier, **untouchability** and **child marriage** were socially accepted; now, they are morally condemned and legally prohibited.
- **Homosexual relationships** once considered immoral are now legally recognized in many countries.

Hence, **moral evolution often leads to legal reform**.

◆ 3. Law Without Morality Loses Legitimacy

A law that completely ignores moral values may become **oppressive or unjust**.

For instance:

- **Racial laws** in Nazi Germany or apartheid laws in South Africa were legal but **morally wrong**.
- People obey law not only out of fear of punishment but because they believe it is morally right.

Therefore, morality provides **ethical legitimacy** to law.

◆ 4. Morality Needs Support from Law

Moral rules without legal backing are often **ineffective** in controlling harmful conduct.

For example:

- Drunken driving or cruelty to animals were once only moral wrongs; now they are **punishable by law**. Thus, **law strengthens moral discipline** through enforceable sanctions.

◆ 5. Law and Morality May Sometimes Conflict

At times, **what is legal may not be moral**, and **what is moral may not be legal**.

Examples:

- **Divorce** may be legally permitted but morally disapproved by some communities.
- **Civil disobedience** or breaking an unjust law (e.g., Gandhi's Satyagraha) may be morally justified though legally punishable.

Hence, law and morality are related, but not always identical.

IV. Views of Jurists

◆ 1. John Austin (Positivist View)

Austin completely **separated law from morality**.

He said law is the **command of the sovereign** and its validity does not depend on whether it is moral or immoral.

For him, **law is valid because it is enacted by the sovereign**, not because it is just.

■ *Criticism:*

This view is too rigid. It ignores the moral foundation of law and may justify unjust laws.

◆ **1. Natural Law School (Classical View)**

Jurists like **Cicero, Aquinas, and Locke** held that **law must be in accordance with moral principles and natural justice**.

According to **St. Thomas Aquinas**:

“An unjust law is not law at all.”

They believed that moral principles are part of the very nature of law.

◆ **2. Roscoe Pound (Sociological School)**

Pound emphasized that **law should serve social interests and moral values**.

He viewed law as a **means of balancing competing moral and social interests**—a tool of social engineering.

V. Case Laws Illustrating the Relationship

1. Som Prakash Rekhi v. Union of India (1981 AIR 212)

The Supreme Court held that **law cannot be divorced from morality**, and that a welfare State must ensure justice based on moral values.

2. Naz Foundation v. Government of NCT of Delhi (2009)

The Delhi High Court held that **criminalizing consensual homosexual acts** violated moral values of equality, dignity, and liberty — showing how law must adapt to evolving morality.

3. Keshavananda Bharati v. State of Kerala (1973)

The Supreme Court held that the **basic structure of the Constitution** is based on principles of **justice, liberty, and morality** — indicating a deep connection between law and moral values.

VI. Conclusion

Law and morality are **two sides of the same coin**.

Law provides the **external force**, while morality provides the **internal conscience** for human behaviour.

A just legal system must draw strength from moral values to command respect and obedience.

Therefore, though law and morality are **distinct in origin and operation**, they are **complementary in purpose** — both seek to ensure **justice, order, and the welfare of society**.

[Hart–Fuller Debate in Jurisprudence](#)

The **Hart–Fuller Debate** is one of the most influential discussions in legal philosophy. It revolves around the relationship between **law and morality**, and whether moral values are essential for a valid legal system.

This debate took place in 1958 through articles published in the *Harvard Law Review* between **H. L. A. Hart** (a positivist) and **Lon L. Fuller** (a natural law theorist).

1. Background

- After World War II, many judges had to decide whether laws passed under Nazi rule were valid.
- This raised an important question:
Should unjust laws still be followed as law?
- Hart and Fuller presented opposite views to answer this.

2. Hart's View (Legal Positivism)

Main Arguments

1. **Law and morality are separate.**

2. A rule is valid as long as it is created through the **proper legal process**, even if morally wrong.
3. Law is like a **command backed by sanction** (influenced by Austin).
4. Judges should **apply the law as written**, not based on personal moral views.
5. In extreme cases of immoral laws (like Nazi laws), Hart said the better option is to **repeal or amend the law**, not deny its legal validity.

Key Points

Aspect	Hart's Position
Foundation of Law	Authority + Procedure
Morality	Not essential for validity of law
Nazi Law Example	Law was legally valid but morally bad
Duty of Court	Apply law as it is

3. Fuller's View (Natural Law Theory)

Main Arguments

1. **Law cannot be separated from morality.**
2. For a rule to be valid law, it must satisfy **moral standards**.
3. Fuller gave **Eight Principles of Inner Morality of Law**—without them a law is not genuine:
 1. Generality
 2. Publicity
 3. Prospectivity (not retrospective)
 4. Clarity
 5. Consistency
 6. Possibility of compliance
 7. Stability over time
 8. Congruence between official action and declared rule
4. Nazi laws failed these moral standards; therefore, they were **not law at all**.

Key Points

Aspect	Fuller's Position
Foundation of Law	Morality + Justice
Morality	Essential element of law
Nazi Law Example	Not true law due to immoral nature
Duty of Court	Ensure law aligns with moral values

4. Core Difference Between Hart & Fuller

Basis	Hart (Positivist)	Fuller (Natural Law)
Law-Morality Relation	Separate	Connected
Validity of Law	Based on authority & procedure	Based on morality + procedure

Basis	Hart (Positivist)	Fuller (Natural Law)
View on Unjust Laws	Valid but bad	Invalid as true law
Main Focus	Legal system	Moral legitimacy of law

5. Conclusion

The Hart–Fuller debate highlights two contrasting legal philosophies:

- **Hart** insists law must be recognized through **legal authority**, independent of moral judgment.
- **Fuller** argues law derives its legitimacy from **morality, fairness, and justice**.

Modern jurisprudence recognizes a balanced approach:

Law needs authority, but legitimacy increases when connected with morality and justice.

Volksgeist

The concept of **Volksgeist** is associated with the **Historical School of Law**, mainly developed by **Friedrich Carl von Savigny**, a German jurist. The term *Volksgeist* means “**Spirit of the People**”. According to Savigny, law is not made but **found** in the customs, beliefs, values and traditions of people.

Meaning of Volksgeist

- *Volk* = People
 - *Geist* = Spirit
- So, **Volksgeist = Spirit of the People**

It refers to the **collective consciousness of society**, shaped by history, culture, morality, social habits, and customs. Law emerges naturally from this spirit rather than being imposed externally.

Main Features

1. **Law is the product of people's life and culture**, not created by any authority.
2. **Custom is the earliest and most authentic source of law**.
3. Changes in law come **slowly and organically**, not suddenly.
4. Legislature should not create law abruptly; law must reflect **public opinion and traditions**.
5. Law grows like a **living organism**, evolving with society.

Savigny's View

Savigny argued against the codification of German law in the early 19th century. He said that:

- Every society has its **unique Volksgeist**.
- Law develops according to the **national character** of that society.
- Imposing foreign or artificial laws harms society's natural development.

"Law is like language — it grows with the people, and dies when the nation loses its identity." — Savigny

Stages of Development of Law (as per Savigny)

1. **Primitive Stage** – Customs regulate society.
2. **Conscious Stage** – Jurists study and refine customs into legal principles.
3. **Legislation Stage** – Rules are codified into law.
4. **Scientific Stage** – Law becomes systematic and rational.

Sources of Law under Volksgeist Theory

- Customs

- Traditions
- Public consciousness
- Social practices
- Common morality
- Judicial precedents

Criticism

1. Too much importance on customs → slows progress.
2. Ignores role of legislation and judiciary in modern society.
3. Not applicable in diverse societies like India.
4. Blind faith in tradition may protect **evil customs** (e.g., sati, child marriage).
5. Social reforms often require **law to change customs**, not follow them.

Importance / Relevance Today

- Still useful to understand how laws should reflect social needs.
- Helps in law-making that suits **local conditions** rather than borrowing blindly.
- Demonstrates that society and law are **interdependent**.

Example in India:

Abolition of Sati, dowry laws, triple talaq regulation — all show **law reforms** sometimes need to override customs but also must consider social acceptance.

Animus

The term "**Animus**" is a Latin word meaning **intention, mind, or mental element**. In jurisprudence, animus refers to the **state of mind or intention behind an act**, which is essential in determining legal responsibility.

In simpler words:

Animus = Intention to do an act (mental element)

Law often distinguishes between mere physical act (actus) and mental intention (animus).

Relation with Actus Reus

In law, to establish liability, generally two elements are required:

1. **Actus Reus** – the physical act
2. **Mens Rea / Animus** – intention or guilty mind

Both together create **criminal responsibility**:

Actus non facit reum nisi mens sit rea

An act does not make one guilty unless the mind is also guilty.

Types / Usage of Animus in Legal Concepts

Animus is used to form several legal maxims and concepts:

1. Animus Possidendi

- Intention to possess.
- Required along with physical possession for legal possession.

Example: A person occupying land with intention to own it — **possession is legally recognized**.

2. Animus Revertendi

- Intention to return.
- Applied in ownership of animals.

Example: A cow that returns to owner's house daily is still **property of the owner**, even if found straying.

3. Animus Furandi

- Intention to steal.
- Essential element in **theft**.

Example: Taking someone's property without intention to return = theft.

4. Animus Testandi

- Intention to make a will.
- For a valid *will*, a person must have animus testandi at the time of execution.

5. Animus Injuriandi

- Intention to injure.
- Important in **torts like defamation, assault, false imprisonment, battery etc.**

Example: Harsh words spoken jokingly may not amount to defamation without intention to harm.

Significance

Significance of Animus Explanation

Determines liability	Helps differentiate innocent acts from wrongful acts
Criminal law	Establishes <i>mens rea</i> (guilty mind)
Civil law	Helps assess damages & intention behind act
Property law	Important in determining possession and ownership
Law of wills	Validity depends on intention of testator

Examples

1. Accidentally hitting someone while driving – **no animus**, so not murder.
2. Taking a book thinking it's yours – **no animus furandi**, so theft may not be proved.
3. Occupying land openly and intending to own it – **animus possidendi**, fulfils adverse possession.

Unit-II

The Schools of Law and their application to the Indian Legal System

➤ Analytical School of Jurisprudence

The **Analytical School of Jurisprudence**, also known as the **Positivist School**, is primarily concerned with **law as it is** (i.e., *positive law*) rather than **law as it ought to be**.

This school studies the **structure of law**, its **origin, command, and enforcement**, without considering morality, religion, or ethics.

The analytical approach emphasizes that **law derives its validity from the command of the sovereign authority**, not from its moral or ethical correctness.

◆ Main Jurists of the Analytical School

1. **Jeremy Bentham (1748–1832)**
 - Known as the *Father of Analytical Jurisprudence*.
 - Advocated **utilitarianism**, i.e., law should aim at “*the greatest happiness of the greatest number*.”

- Focused on codification and systematization of law.
- Distinguished between *expository jurisprudence* (law as it is) and *censorial jurisprudence* (law as it ought to be).

2. John Austin (1790–1859)

- Developed the most systematic form of analytical positivism.
- Defined law as:

“A rule laid down for the guidance of an intelligent being by an intelligent being having power over him.”

- Emphasized that every law is a **command of the sovereign backed by sanction**.
- Distinguished between:
 - **Positive law** (command of sovereign), and
 - **Morality** (not law because unenforced).
- According to him, **validity of law** depends on **authority**, not on **justice or morality**.

3. H.L.A. Hart (1907–1992)

- Modern exponent of analytical positivism.
- Criticized Austin’s theory and refined it through his “**concept of law.**”
- Distinguished between:
 - **Primary rules** (imposing duties), and
 - **Secondary rules** (conferring powers, e.g., rules of recognition, change, and adjudication).
- Hart recognized some **overlap between law and morality**, but maintained their conceptual distinction.

◆ Basic Principles of the Analytical School

1. **Law is Command of Sovereign:**
Law is created by the State or the sovereign authority and must be obeyed.
2. **Law and Morality Are Separate:**
The validity of law does not depend on whether it is morally good or bad. Law is valid because it is enacted by the proper authority.
3. **Sanction Is Essential:**
Every law is backed by a threat of punishment or sanction for disobedience.
4. **Focus on Positive Law:**
It studies **law as it exists** (positive law), not what it should be ideally.
5. **Systematic Study of Legal Concepts:**
The school analyses concepts like **rights, duties, liability, person, and ownership**.
6. **Law Is Based on Human Will:**
Law is man-made and not derived from divine or natural sources.

◆ Criticism of the Analytical School

1. **Too Narrow and Rigid:**
It confines itself only to State-made law and ignores customs, judicial precedents, and moral values.
2. **Ignores Justice and Ethics:**
The school neglects the moral foundation of law, which is essential for justice.
3. **Unsuitable for Modern Welfare States:**
Austin’s idea of absolute sovereignty does not fit in democratic countries like India, where sovereignty is distributed among different organs.
4. **Fails to Explain Constitutional and International Law:**
These laws cannot be explained purely as commands backed by sanctions.

◆ Application to the Indian Legal System

Despite criticisms, the **Analytical School has greatly influenced the Indian legal system**, particularly in the following ways:

1. **Codification of Laws:**
India's vast body of codified laws (e.g., IPC, CrPC, CPC, Contract Act) reflects Bentham's and Austin's idea of *law as command of the sovereign*.
2. **Legislative Supremacy:**
The Indian Parliament, as the supreme law-making body, represents the **sovereign authority** in Austin's sense.
3. **Focus on Positive Law:**
Indian courts interpret and apply **statutory laws** as enacted by the legislature—this approach is rooted in analytical positivism.
4. **Concept of Sanction:**
Every law in India provides for **legal consequences or sanctions** for disobedience, following the Austinian principle.
5. **Judicial Interpretation:**
Though morality and equity are sometimes considered, **courts primarily apply the written law**, consistent with the analytical approach.
6. **Hart's Influence:**
The modern Indian legal system reflects **Hart's balance between legal rules and moral principles**, especially through **constitutional interpretation** (e.g., "rule of recognition" reflected in Article 13 of the Constitution, where all laws must conform to the Constitution).

◆ Illustrative Case Laws

1. **State of Rajasthan v. Union of India (1977)**
– The Supreme Court emphasized that the **rule of law is supreme**, echoing analytical positivism's faith in legal authority.
2. **A.K. Gopalan v. State of Madras (1950)**
– The Court initially adopted a **strict positivist view**, holding that as long as a law is validly enacted, its morality cannot be questioned.
3. **Maneka Gandhi v. Union of India (1978)**
– Marked a **shift from strict positivism** toward a balance between law and morality (Hart's influence). It linked legal validity with principles of fairness and reasonableness.

◆ Conclusion

The Analytical School laid the **foundation of modern legal positivism** by emphasizing that law must be studied as it is, not as it ought to be.

Although it separates law from morality, its principles of **sovereignty, command, and sanction** remain fundamental to the structure of legal systems worldwide.

In India, while pure positivism is not fully accepted due to constitutional morality and judicial activism, the **analytical approach** continues to guide **legislative drafting, codification, and statutory interpretation**.

Thus, the **Analytical School** provides the **structural backbone** of the Indian legal framework, complemented by moral and social considerations.

(ii) Historical School of Jurisprudence

The **Historical School of Jurisprudence** emphasizes that **law is not made but found** — it develops **gradually through the customs, traditions, and experiences of people**.

Unlike the **Analytical School**, which views law as the command of a sovereign, the Historical School regards law as a **product of social evolution** rather than of deliberate legislation.

This school maintains that law grows **organically with the life of the people**, reflecting their customs, habits, beliefs, and national character.

◆ Origin and Background

The Historical School emerged in **Germany during the 19th century** as a reaction against **natural law** and **legal positivism**. At that time, thinkers like **Savigny** opposed the idea that law could be created by arbitrary acts of rulers or legislators. They argued that law must evolve **in harmony with the spirit of the people (Volksgeist)**.

◆ Main Jurists of the Historical School

1. Friedrich Karl von Savigny (1779–1861)

- The **founder** of the Historical School.
- He opposed the idea of **codification** of law by rulers or parliaments (as proposed by Thibaut).
- According to Savigny, **law develops with the people, out of their common consciousness and traditions**.

Key Points of Savigny's Theory:

- Law is not made but found in the **common consciousness of the people (Volksgeist)**.
- Law, language, and customs develop simultaneously.
- Codification should be **gradual** and **based on the customs of the people**.
- Sudden legislation or codification disturbs the organic growth of law.

■ *Example:* The German Civil Code (Bürgerliches Gesetzbuch) was based on the historical development of German customary law, following Savigny's ideas.

2. Sir Henry Maine (1822–1888)

- A British jurist and anthropologist.
- Known for his book *"Ancient Law"* (1861).
- He studied the **evolution of law from ancient societies to modern times**.

Key Contribution:

- Law progresses from **status to contract**:

"The movement of the progressive societies has hitherto been a movement from status to contract."

- In primitive societies, a person's rights and duties were determined by **status (birth, caste, or family)**.
In modern societies, rights arise from **agreement or contract**, showing the growth of individual freedom.

Example: In ancient India, status (varna and jati) determined one's rights; today, equality before law ensures freedom of contract.

3. Edmund Burke (1729–1797)

- Considered the law as the **result of accumulated wisdom** of generations, not as a product of reason alone.
- Law represents the **traditions and experiences** of a nation, which should be respected.

4. Puchta (1798–1846)

- Disciple of Savigny.
- Developed the theory of **juristic will** (*juristische Person*).
- Stated that law originates both from **customs** and **juristic elaboration** by legal experts.

◆ Main Principles of the Historical School

1. Law Is a Product of Social Evolution:

Law develops gradually like language, customs, and institutions — not through commands but through **social growth**.

2. Law Originates from Customs:

Customs are the **earliest and most reliable sources of law**. Legislators only recognize and refine them.

3. Volksgeist (Spirit of the People):

According to Savigny, law must be in harmony with the people's *Volksgeist* — their collective consciousness, culture, and traditions.

4. **Codification Should Be Gradual:**
Law should not be codified abruptly; codification must reflect existing customs and social needs.
5. **Law Evolves with Civilization:**
As society progresses, law evolves to meet new social, economic, and moral conditions.

◆ Criticism of the Historical School

1. **Excessive Dependence on the Past:**
The school overemphasizes tradition and ignores the need for progressive or reformative legislation.
2. **Neglects Role of Legislation:**
It underestimates the importance of deliberate law-making in modern democratic societies.
3. **Volksgeist Is Vague:**
The concept of *Volksgeist* (spirit of the people) is abstract and difficult to define in pluralistic societies.
4. **Ignores Judicial and Constitutional Development:**
It gives little importance to the creative role of judges and constitutional frameworks.
5. **Unsuitable for Modern Multicultural Nations:**
In countries like India with diverse communities, it's difficult to identify one common *Volksgeist*.

◆ Application of the Historical School to the Indian Legal System

The Historical School has had **significant influence** on the development of Indian law, especially in the following areas:

1. **Custom as a Source of Law:**
 - In India, **custom** has always been a vital source of law.
 - Even today, **personal laws** (Hindu Law, Muslim Law, Tribal Law) recognize customs that are ancient, certain, and reasonable.
 - The courts have repeatedly upheld valid customs as law under **Article 13(3)(a)** of the Constitution.

■ *Example:* Customary practices regarding marriage, inheritance, or adoption under Hindu and tribal systems.

2. **Gradual Development of Law:**
 - Indian law has evolved gradually from **ancient Dharmashastra**, **British common law**, and **modern codified statutes**.
 - This evolutionary growth reflects the **historical school's principle** that law develops with society.
3. **Codification Based on Social Needs:**
 - Major codifications in India (e.g., **Hindu Marriage Act**, **Hindu Succession Act**) were not arbitrary; they reflected social and moral progress in Indian society.
 - This aligns with Savigny's idea that codification should **reflect existing customs and the people's will**.
4. **Judicial Recognition of Customs:**
 - Indian courts have often recognized customs as having **the force of law**, if they fulfil certain criteria (antiquity, continuity, reasonableness, and certainty).
 - Example: *Madhavrao v. Raghunath (AIR 1928 PC 105)* — the Privy Council recognized Hindu customs as a valid source of law.
5. **Status to Contract (Henry Maine's Theory):**
 - India's legal development shows a movement from **status to contract**:
 - From caste-based personal rights (status)
 - To freedom of contract and equality before law (modern contract law).
 - Example: **Abolition of Untouchability (Article 17)** and **Equal opportunity laws** signify this shift.
6. **Influence on Modern Indian Jurisprudence:**

- The **Law Commission of India** often studies **social customs and public opinion** before proposing reforms — reflecting the historical approach.
- Even the **Constitution** draws inspiration from India's cultural and moral traditions, showing the fusion of historical and modern jurisprudence.

◆ Illustrative Case Laws

1. **Madhavrao v. Raghunath (1928 PC)**
 - Recognized long-established customs as a valid source of Hindu law.
 - Reaffirmed the historical principle that law evolves from social practices.
2. **Mohanlal v. Benoy Krishna (1953 SC)**
 - The Supreme Court held that custom is a part of Indian law if it is **ancient, certain, and reasonable**.
3. **State of Bombay v. Narasu Appa Mali (1952)**
 - The Court observed that **personal laws based on custom and tradition** are an essential part of Indian legal culture.

◆ Conclusion

The **Historical School** views law as a **living and evolving institution** — born from the collective experiences of society. It teaches that **law cannot be separated from the culture, customs, and traditions** of the people.

In the Indian context, this school has immense relevance because:

- Custom still plays a vital role,
- Law evolves gradually through social change, and
- Codification reflects India's social realities.

Thus, while modern India relies heavily on **legislation and constitutional law**, the **Historical School** continues to provide the **philosophical foundation** for understanding how Indian law has **grown, adapted, and modernized** through centuries of social evolution.

(iii) Philosophical School of Jurisprudence

The **Philosophical School of Jurisprudence**, also known as the **Ethical or Natural Law School**, studies **law in relation to justice, morality, reason, and ethics**.

It believes that the **ultimate purpose of law is to secure justice**, and that law must be evaluated not merely by its source or form (as the analytical school says), but by its **moral content and social purpose**.

In simple terms:

“Law should be based on reason and morality — not just on the command of the sovereign.”

This school considers law as an instrument to achieve **justice, liberty, equality, and human welfare**.

◆ Origin and Development

The roots of the Philosophical School can be traced to the **Natural Law Theory**, which has existed since ancient times.

Period	Thinkers	Main Idea
Ancient Period	Greek philosophers like Socrates, Plato, Aristotle	Law should reflect <i>reason</i> and <i>virtue</i> .
Medieval Period	St. Thomas Aquinas (Christian Philosopher)	Law is part of divine reason and must promote moral good.
Modern Period	Grotius, Kant, Rousseau, Stammler	Law is man-made but must be consistent with reason and morality.

◆ Main Jurists and Their Views

1. Socrates (469–399 B.C.)

- Earliest proponent of natural law.
- Believed that **law must conform to moral truth** and human reason.

- According to him, **an unjust law is not a law.**

2. Plato (427–347 B.C.)

- In his book *“The Republic”*, he said the purpose of law is to promote **justice** and **the ideal state**.
- The ruler should govern according to reason and moral principles.

3. Aristotle (384–322 B.C.)

- Distinguished between:
 - **Natural justice** → based on reason, universal and unchanging.
 - **Legal justice** → created by the state, can change from place to place.
- Said that **“law is reason free from passion.”**

4. St. Thomas Aquinas (1225–1274) – *Theological Version*

- Connected law with religion and morality.
- Divided law into four kinds:
 1. **Eternal Law** – God’s will.
 2. **Divine Law** – Revealed in scriptures.
 3. **Natural Law** – Known by reason.
 4. **Human Law** – Made by man but must be in harmony with natural law.
- Said: **“An unjust law is not a law at all.”**

5. Hugo Grotius (1583–1645) – *Father of Modern Natural Law*

- Separated law from religion, said natural law exists **even if God did not exist**.
- Law should be based on **reason and human nature**.
- His ideas influenced **international law** and the concept of **human rights**.

6. Immanuel Kant (1724–1804) – *Rational Version*

- Linked law to **freedom and morality**.
- According to him, **law should restrict a person’s freedom only to ensure freedom for all others.**

7. Rudolf Stammler (1856–1938) – *Modern Natural Law*

- Distinguished between **“law”** and **“just law.”**
- Law is the body of rules made by the State, but **“just law”** is that which is based on justice.
- Justice, for Stammler, means **“social harmony”** achieved through law.

◆ Basic Principles of the Philosophical School

1. **Law is based on reason and morality.**
Law must conform to moral and ethical standards to be valid.
2. **Law aims to achieve justice.**
The main function of law is to secure justice, equity, and fairness in society.
3. **Natural law is universal and eternal.**
True law is based on the nature of human beings and reason; it is the same for all times and places.
4. **Law and ethics are interconnected.**
A law that goes against morality or justice loses its binding force.
5. **Law is dynamic, not static.**
It evolves with the changing moral, social, and political values of society.

◆ Criticism of the Philosophical School

1. **Vagueness of Natural Law:**
Different philosophers gave different meanings of “natural law,” making it uncertain.
2. **Idealistic Approach:**
Focuses on “what ought to be” rather than “what is,” so lacks practical application.
3. **Subjectivity:**
The concept of morality differs among cultures and individuals.
4. **Neglect of Positive Law:**
It sometimes ignores the importance of actual, enforceable legal systems.

◆ Contribution and Importance

Despite criticisms, this school made major contributions:

1. **Foundation of Human Rights:**
The idea of universal human rights and constitutional morality comes from natural law philosophy.
2. **Basis of International Law:**
Grotius’s natural law theory formed the basis for international legal principles.
3. **Guidance for Law Reform:**
Moral philosophy inspires legislators to frame just and humane laws.
4. **Protection Against Tyranny:**
Natural law serves as a moral check on arbitrary state power — “unjust law is no law.”
5. **Influence on Modern Constitutions:**
Concepts like justice, equality, liberty, and fraternity in modern constitutions are rooted in philosophical jurisprudence.

◆ Application to the Indian Legal System

1. **Preamble and Fundamental Rights:**
The Indian Constitution is based on ideals of **justice, liberty, equality, and fraternity** — all natural law concepts.
2. **Article 14 (Equality before Law)**
– Reflects Aristotle’s idea of natural justice and equality.
3. **Article 21 (Right to Life and Personal Liberty)**
– Represents the moral and philosophical basis of law; courts interpret it broadly to ensure human dignity.
4. **Doctrine of Natural Justice:**
– Indian courts apply the principles of fairness (*audi alteram partem*, *nemo judex in causa sua*), which stem from philosophical jurisprudence.
5. **Judicial Activism:**
– Courts often rely on **moral reasoning and justice-oriented interpretation** of law (e.g., *Maneka Gandhi v. Union of India*, 1978).
6. **Public Interest Litigation (PIL):**
– Inspired by the idea that law must serve social justice and moral good.

◆ Illustrative Case Laws

1. **Maneka Gandhi v. Union of India (1978)**
– The Supreme Court expanded Article 21, holding that law must be “**just, fair, and reasonable**.”
– This reflects the philosophical school’s influence of morality in law.
2. **Kesavananda Bharati v. State of Kerala (1973)**
– The Court held that **basic structure** (justice, liberty, equality) cannot be destroyed even by constitutional amendment — an idea rooted in natural law.
3. **Olga Tellis v. Bombay Municipal Corporation (1985)**
– The right to livelihood was included under the right to life — a moral, justice-based interpretation.

4. Justice K.S. Puttaswamy v. Union of India (2017)

– Recognized the **right to privacy** as a fundamental right, based on human dignity and moral philosophy.

◆ Conclusion

The **Philosophical School** views law as a **moral science**, not just a command of authority.

It insists that **justice is the ultimate aim of law**, and that law should be consistent with human reason, morality, and ethics.

In the Indian context, this school has had a **profound influence** — reflected in the Constitution, judicial interpretation, and legal reforms aimed at achieving justice and social welfare.

Thus, while **Analytical School** focuses on *law as it is*, the **Philosophical School** emphasizes *law as it ought to be* — both are essential for a balanced and humane legal system.

(iv) Sociological School of Jurisprudence

Introduction: The **Sociological School** emerged in the **early 20th century** as a **reaction to the formalistic and mechanical approach** of the Analytical (Benthamite) and Historical schools.

- It emphasizes that **law is a social phenomenon** and cannot be understood **in isolation from society**.
- Law should aim to **achieve social justice, welfare, and order**, not merely enforce rules mechanically.

Key Idea:

“Law is a means of social engineering.” – Roscoe Pound

Origin and Development

1. Developed primarily in **Europe and the USA**.
2. **Roscoe Pound (1870–1964)** – Father of Sociological Jurisprudence.
 - Advocated **law as a tool for social engineering**, balancing competing interests in society.
3. Other notable sociologists:
 - **Karl Llewellyn** – emphasized law in action and social effects.
 - **Eugen Ehrlich (Austria)** – emphasized **living law** of social norms.

Objectives of Sociological Jurisprudence

1. Promote **social justice** and equality.
2. Adjust law according to **changing social needs**.
3. Study **effectiveness of law** in controlling social behaviour.
4. Help **legislators and courts** make law more responsive to society.

Key Features

1. **Law and Society are Interrelated:**
 - Society influences law; law influences society.
2. **Empirical Approach:**
 - Sociological school relies on **data, observations, and social research**.
3. **Dynamic and Progressive:**
 - Law is not static; must change to meet social progress.
4. **Social Engineering:**
 - Law acts as a tool to **engineer society** and balance interests of different groups.

◆ Main Jurists and Their Views

1. Auguste Comte (1798–1857) – Founder of Sociology

- Though not a jurist, his ideas inspired this school.
- Stressed that society and its institutions (including law) must be studied scientifically.

2. Rudolf von Ihering (1818–1892) – Germany

- Considered the *real founder* of the Sociological School.
- Said:

“Law is not an end in itself, but a means to serve social purposes.”

- Law’s aim is to **protect social interests** and ensure **social control**.
- Criticized Austin’s idea of “law as command” — instead, called law **a means to social end**.
- His famous quote:

“The purpose of law is the protection of interests.”

3. Eugen Ehrlich (1862–1922) – Austria

- Known for the concept of “**living law**.”
- According to him:

“The centre of gravity of legal development lies not in legislation, nor in judicial decisions, but in society itself.”

- Actual law exists in **social practices, customs, and institutions**, not only in statutes.
- Differentiated between:
 - **Law in books** – enacted law, and
 - **Law in action** – how people actually behave in society.

4. Roscoe Pound (1870–1964) – United States

- The most famous exponent of Sociological Jurisprudence.
- Introduced the concept of “**Law as a tool of social engineering**.”

“Law should be used to build an efficient social order in which people can fulfil their interests harmoniously.”

- Classified human interests into three types:
 1. **Individual Interests** – e.g., personal freedom, reputation.
 2. **Public Interests** – e.g., public safety, health, and order.
 3. **Social Interests** – e.g., preservation of social institutions like family, state, and economy.
- The task of law is to **balance and harmonize these competing interests**.

5. Duguit (1859–1928) – France

- Emphasized the concept of “**social solidarity**.”
- Law should promote cooperation and harmony among individuals.
- According to him:

“No one has rights; everyone has duties towards society.”

- State is not supreme; its authority comes from fulfilling its **social function**.

6. Léon Duguit, Ehrlich, Pound

- All stressed that **law must adapt to social realities** and should be a means of achieving **justice through social welfare**.

◆ Basic Principles of the Sociological School

1. **Law is a Social Institution:**
Law is created by society and exists to serve society.
2. **Law Should Serve Social Needs:**
The purpose of law is to promote **social justice, order, and welfare**.
3. **Law is Dynamic:**
Law must evolve with the changing needs of society.
4. **Focus on Law in Action:**
More importance is given to **how law works in real life**, not just what is written in books.
5. **Interdisciplinary Approach:**
Law must be studied with sociology, economics, psychology, and political science.
6. **Balancing of Interests:**
Law must balance **individual, public, and social interests** to achieve harmony.
7. **Social Engineering (Roscoe Pound):**
Law should act as an instrument to build a just social order — like an engineer builds a bridge, law builds social balance.

◆ Criticism of the Sociological School

1. **Overemphasis on Society:**
Sometimes it ignores the importance of authority and legal certainty.
2. **Lack of Precision:**
Difficult to define exactly what “social welfare” or “social interest” means.
3. **Too Practical, Less Theoretical:**
It focuses on real situations but sometimes lacks clear legal principles.
4. **Judicial Discretion Risk:**
Giving too much importance to judges’ social views may lead to inconsistency

◆ Contribution and Importance

1. **Humanized Law:**
Made law more humane and people-oriented instead of rigid and technical.
2. **Law as a Tool of Social Change:**
Promoted the idea that law can change society (e.g., abolition of untouchability, gender equality laws).
3. **Influence on Legislation:**
Modern welfare legislations (labour laws, family laws, consumer protection) are based on sociological principles.
4. **Foundation of Judicial Activism:**
Encouraged judges to interpret law in light of social realities and justice.
5. **Bridge Between Law and Sociology:**
Helped to study the **actual functioning of law in society**.

◆ Application to the Indian Legal System

The **Indian legal system** is deeply influenced by the Sociological School.

1. **Preamble of the Constitution:**
 - Aims to secure **justice — social, economic, and political**.
 - Reflects Roscoe Pound’s idea of law as social engineering.
2. **Directive Principles of State Policy (DPSPs):**
 - Articles 38–51 aim to establish a **welfare state**, promoting social and economic justice.
3. **Judicial Activism and PILs:**
 - Courts use law to bring social reforms (education, environment, rights of the poor).

- Example: *Vishaka v. State of Rajasthan* (1997) – guidelines for protection of women at workplace.

4. Social Legislation:

- Laws like the **Dowry Prohibition Act (1961)**, **Domestic Violence Act (2005)**, **Consumer Protection Act (2019)**, and **Right to Education Act (2009)** show the influence of sociological jurisprudence.

5. Article 21 (Right to Life):

- Expanded by the Supreme Court to include right to livelihood, health, environment, privacy, etc.
- Shows the idea of *law serving social welfare*.

◆ Illustrative Case Laws

1. Vishaka v. State of Rajasthan (1997)

– Supreme Court created guidelines for workplace harassment, treating law as a **tool of social change**.

2. Maneka Gandhi v. Union of India (1978)

– Expanded Article 21 to ensure **just, fair, and reasonable law**, aligning with social justice.

3. Olga Tellis v. Bombay Municipal Corporation (1985)

– Recognized **right to livelihood** as part of right to life.

4. M.C. Mehta v. Union of India (1987)

– Introduced the **principle of absolute liability** for industries — a step toward social welfare and environmental protection.

5. Subhash Kumar v. State of Bihar (1991)

– Recognized **right to pollution-free environment** as part of right to life.

◆ Conclusion

The **Sociological School** marks a shift from abstract theories to a **realistic and human-centred approach**.

It believes that law must not merely command or regulate but **serve the people** and **fulfil the social purpose**.

In the Indian context, this school has had **tremendous influence** — from the Constitution to legislation and judicial decisions — making India's legal system **progressive, welfare-oriented, and justice-driven**.

Thus, the Sociological School sees **law as a living instrument of social change** — dynamic, evolving, and deeply rooted in the realities of society.

(v) Realist School of Jurisprudence

The **Realist School of Jurisprudence** emerged in the **20th century**, mainly in the **United States and Scandinavia**.

Is school ne kaha —

“Law is not what is written in statutes or decided in books; law is what the courts actually do.”

Realists believe that **law in action (law applied by judges)** is the true law — not merely what is written in legislation.

“A branch of sociological jurisprudence, but with a scientific and empirical approach.”

In short, **Realists focus on the behaviour of judges, courts, and legal institutions** — because they decide what the law really means in practice.

◆ Origin and Development

The Realist movement started in **the United States around 1920–1940** as a reaction to **formalism and mechanical jurisprudence** (which believed that judges merely apply law logically).

Realists argued that judges are influenced by **social, political, psychological, and economic factors**, and law should be studied in that real-life context.

The school is divided into two main branches:

1. **American Realism** (USA)
2. **Scandinavian Realism** (Europe — mainly Norway, Sweden, Denmark)

◆ Main Jurists and Their Views

1. Oliver Wendell Holmes Jr. (1841–1935) – USA

- Known as the *Father of American Realism*.
- Said: “The life of the law has not been logic; it has been experience.”
- He emphasized that law is **not a logical science** but a **prediction of what courts will do**.
- Famous quote:

“The prophecies of what the courts will do in fact, and nothing more pretentious, are what I mean by the law.”

- Holmes believed that judges are influenced by **social facts, public policy, and human experience**.

2. Karl Llewellyn (1893–1962) – USA

- One of the leaders of the **American Realist Movement**.
- Argued that law should be studied by **observing how it operates in action**.
- Differentiated between:
 - **Law in books** (statutes, codes)
 - **Law in action** (how judges and officials apply law in real life)
- Believed that **judicial decisions are influenced by extra-legal factors** — personality, social background, and public opinion.

3. Jerome Frank (1889–1957) – USA

- Emphasized the **psychological factors** influencing judges.
- His book “*Law and the Modern Mind*” (1930) argued that judges’ personal beliefs, emotions, and upbringing affect their decisions.
- Introduced the concept of “**Fact Skepticism**”:
 - Judges may differ in interpreting facts.
 - Therefore, **law is uncertain** and depends on who the judge is.

4. John Chipman Gray (1839–1915)

- Said that **law is what judges declare** during their judgments.
- “The real law is found in court decisions, not in legislative texts.”

5. Scandinavian Realists:

These jurists focused more on the **psychological and philosophical aspects** of legal behaviour.

- **Axel Hägerström (1868–1939)** – Sweden
 - Denied the existence of any metaphysical concept like “natural law” or “justice.”
 - Said law is based on **human conduct and social behaviour**, not moral ideals.
- **Alf Ross (1899–1979)** – Denmark
 - Considered law as **directive to human behaviour** — it works only if people believe in it.
 - Defined law as “a set of social facts” that can be empirically verified.
- **Karl Olivecrona (1897–1980)** – Sweden
 - Said legal rules are **commands without real force**, effective only through social acceptance.
 - Law is not morality; it’s a **social technique** for controlling behaviour.

◆ Basic Principles of the Realist School

1. **Law is what the Courts do in Practice:**
Real law is the practical working of the judicial system, not written codes.

2. **Law is Uncertain:**
Because judicial behaviour depends on social, psychological, and personal factors.
3. **Empirical and Scientific Approach:**
Law should be studied through observation of actual court behaviour, not abstract reasoning.
4. **Judicial Role is Creative:**
Judges do not merely apply existing rules; they **create new law** through interpretation.
5. **Law in Books ≠ Law in Action:**
There is often a gap between what the law says and how it actually operates.
6. **Focus on Human Behaviour:**
Law must be studied as a part of human conduct and social psychology.

◆ Criticism of the Realist School

1. **Excessive Skepticism:**
By saying law is uncertain, realists undermine the authority of law.
2. **Neglect of Rules and Principles:**
Focus only on judicial behaviour, ignoring the importance of legal doctrines.
3. **Subjectivity:**
Judicial decisions based on personal or social bias may create inconsistency.
4. **No Constructive Theory of Law:**
Realists criticize existing theories but fail to build a coherent new theory.

◆ Contribution and Importance

1. **Realistic View of Law:**
Brought law closer to real life and practical realities.
2. **Foundation for Empirical Legal Studies:**
Inspired research on how courts, judges, and legal systems actually function.
3. **Encouraged Legal Reforms:**
Helped identify gaps between law and justice by studying real-life impact.
4. **Strengthened Judicial Creativity:**
Recognized that judges play a key role in shaping and evolving the law.
5. **Law as a Social Science:**
Promoted scientific observation and behavioural analysis of legal institutions.

◆ Application to the Indian Legal System

Though developed in Western countries, **Realist ideas** deeply influence **Indian judiciary and legal thought**:

1. **Judicial Activism:**
Indian judges often interpret law creatively to achieve justice.
Example: *Maneka Gandhi v. Union of India (1978)* — expanded meaning of “life and liberty.”
2. **Public Interest Litigation (PIL):**
Courts act proactively to enforce rights of marginalized groups — reflecting “law in action.”
3. **Judicial Discretion:**
In many Indian cases, outcomes depend on judges’ interpretation, showing the realist influence.
4. **Constitutional Interpretation:**
The Supreme Court’s dynamic interpretation of fundamental rights (e.g., *Right to Privacy* case) reflects the realist idea that law evolves through judicial behaviour.
5. **Fact-based Judgments:**
Courts rely heavily on the **facts of each case** and practical realities, not just rigid application of rules.

◆ Illustrative Case Laws

1. **Maneka Gandhi v. Union of India (1978)**
 - Expanded the meaning of “life and personal liberty.”
 - Reflected judicial creativity beyond the text of the law.
2. **Kesavananda Bharati v. State of Kerala (1973)**
 - Introduced the **Basic Structure Doctrine** — an entirely judicial creation.
3. **Vishaka v. State of Rajasthan (1997)**
 - Court laid down guidelines in absence of legislation, showing law as what the court does.
4. **Justice K.S. Puttaswamy v. Union of India (2017)**
 - Recognized **Right to Privacy** as a fundamental right — again showing realist influence in evolving law through judgments.
5. **M.C. Mehta v. Union of India (1987)**
 - Developed **Absolute Liability Principle** — purely judicial innovation.

◆ Conclusion

The **Realist School** represents the **practical and functional side of jurisprudence**.

It shifts the focus from abstract theories and written codes to **actual judicial behavior and social realities**.

For Realists, **law is not found in statutes but in courtrooms** — in the actions and decisions of judges who apply it.

In the Indian legal system, the Realist School has inspired **judicial creativity, activism, and progressive interpretation**, making the law a living instrument of justice.

Thus, the Realist School ensures that **law remains flexible, dynamic, and relevant** to changing times and social needs.

(vi) Kelsen's Pure Theory of Law

The **Pure Theory of Law** was propounded by **Hans Kelsen (1881–1973)**, an Austrian jurist, philosopher, and one of the most influential figures in modern legal thought.

He is known as the **“Austrian Hans”** and often called the *Architect of Modern Legal Positivism*.

Kelsen's aim was to create a **scientific, objective, and value-free theory of law** — “pure” in the sense that it should be **free from political ideology, morality, sociology, history, or any external element**.

According to Kelsen, **law should be studied as a system of norms**, not as a reflection of justice, morality, or social goals.

◆ Meaning of “Pure”

The term **“Pure”** in Kelsen's theory means:

The study of law should be *purely legal* — separated from politics, sociology, ethics, and history.

He wanted to make jurisprudence as **scientific as natural sciences**, where only the **legal norm** is the object of study.

◆ Main Objectives of Kelsen's Theory

1. To purify legal science from external influences (like morality, sociology, politics, etc.).
2. To provide a **unified structure of the legal system**.
3. To explain the **validity and hierarchy of legal norms** scientifically.
4. To establish the concept of **Grundnorm (Basic Norm)** as the foundation of legal validity.

◆ Core Concepts of Kelsen's Theory

1. Law as a Normative Science

- Kelsen viewed law not as a command or as a reflection of social or moral ideas, but as a **system of norms**.
- A **norm** is a statement prescribing that certain behaviour *ought to be* done — e.g., “*One ought not to steal.*”
- So, law tells people what *ought* to happen, not what *is* happening.

2. Hierarchy of Norms (Normative Structure)

Kelsen's most famous contribution is his idea that every legal system is a **hierarchy of norms**, arranged in an order of authority — a “pyramid of norms”.

Structure:

1. **Grundnorm (Basic Norm)** – the fundamental norm from which all others derive their validity.
2. **Constitutional Norms** – created according to the basic norm.
3. **Statutory Laws** – made by the legislature under the Constitution.
4. **Administrative Regulations** – made under statutory authority.
5. **Judicial Decisions** – applied and interpreted laws.
6. **Individual Acts** – such as contracts, wills, etc.

Each lower norm derives its validity from the higher one, and ultimately all trace back to the **Grundnorm**.

3. The Concept of Grundnorm (Basic Norm)

- The **Grundnorm** is a hypothetical **fundamental norm** that forms the foundation of the entire legal order.
- It is **not enacted**, but **presupposed** — i.e., assumed to exist.
- Example (India):
The **Constitution of India** functions as the **Grundnorm** — all other laws derive their validity from it.
→ Legislature makes laws under it → Executive enforces → Judiciary interprets.

Kelsen said:

“The validity of all norms is derived from the basic norm.”

4. Validity of Law

According to Kelsen, a law is **valid** if it is:

- Created according to the procedure prescribed by a higher norm; and
- In conformity with the Grundnorm.

Validity ≠ Morality —

A law may be unjust but still valid if it is made according to the prescribed legal procedure.

5. No Connection Between Law and Morality

Kelsen clearly separated law from morality, ethics, politics, and sociology.

- Morality belongs to “what ought to be good.”
- Law belongs to “what ought to be done as per the rule.”
Thus, a law can be **immoral yet legally valid**.

6. Dynamic Nature of Law

The legal system is **dynamic** — new norms are continuously created according to procedures laid down by higher norms. Hence, law changes with time but the **structure of validity** (from Grundnorm downward) remains the same.

7. Sanction and Coercion

- Every legal norm is connected with a **sanction** — it prescribes punishment for non-compliance.
- This distinguishes **legal norms** from **moral norms**, which lack coercive force

◆ Criticism of Kelsen's Pure Theory

1. **Too Abstract:**
The concept of Grundnorm is theoretical and lacks practical proof.
2. **Neglects Social and Moral Aspects:**
Law cannot be completely isolated from society, justice, or morality.

3. **Overemphasis on Hierarchy:**
Not all legal systems strictly follow a hierarchical model (e.g., customary laws, judge-made laws).
4. **Unrealistic Purity:**
Law is a social institution influenced by politics, economics, and morality — complete purity is impossible.
5. **Grundnorm Is Hypothetical:**
It is a presupposition, not an actual norm, so its existence is debatable.

◆ Application to the Indian Legal System

Kelsen's ideas are highly relevant to India:

1. **Constitution as Grundnorm:**
The **Constitution of India** is the supreme legal norm — all other laws derive their validity from it (Art. 13).
2. **Hierarchy of Norms:**
 - Constitution → Statutory laws → Rules/Regulations → Judicial orders → Individual acts.
 - Each derives validity from the higher one.
3. **Judicial Review:**
Courts ensure that lower norms (laws, rules, executive actions) conform to the higher norm (Constitution).
4. **Separation of Law and Morality:**
Indian courts sometimes uphold laws based on legal validity even if they are morally debatable (e.g., **A.K. Gopalan v. State of Madras, 1950**).
5. **Dynamic Nature:**
The Indian legal system evolves through amendments, legislation, and judicial interpretation — reflecting Kelsen's view of a dynamic legal order.

◆ Important Case Laws (India)

1. **Kesavananda Bharati v. State of Kerala (1973)**
 - The Supreme Court held that the **Constitution is supreme** and forms the **basic norm** of the legal system.
 - Laws violating the *basic structure* of the Constitution are void — echoing Kelsen's hierarchical theory.
2. **A.K. Gopalan v. State of Madras (1950)**
 - The Court took a **positivist** view: legality depends on authority, not on morality.
3. **Maneka Gandhi v. Union of India (1978)**
 - The Court integrated **morality and fairness** within legal validity, slightly departing from Kelsen's rigid separation.

◆ Conclusion

Kelsen's **Pure Theory of Law** is one of the most scientific and logical explanations of legal structure. He transformed jurisprudence from a philosophy-based to a **system-based science**.

By introducing the concept of **Grundnorm** and **hierarchy of norms**, he provided a universal model applicable to modern constitutional democracies, including India.

Although criticized for being too abstract and ignoring moral or social factors, Kelsen's theory remains **foundational to modern legal positivism**, especially in understanding the **constitutional supremacy, legal validity, and rule of law** in India.

UNIT III – SOURCES OF LAW

Sources of law are the origins from which **legal rules and principles** are derived. They are classified into:

1. **Custom**
2. **Judicial Precedent (Case Law)**
3. **Legislation (Statutory Law)**

Each source is explained in detail below.

➤ Custom

Definition: Custom is a **long-established practice or usage** which, over time, is **accepted by a community as legally binding**.

Sir Henry Maine defined custom as:

“Custom is a rule of conduct which has been gradually established in society, and is recognized as binding by the people.”

Characteristics of Custom

1. **Long usage** – The practice must have existed for a long time.
2. **Continuity** – Must be practiced continuously without interruption.
3. **Certainty** – Must be clearly defined and well-understood.
4. **Reasonableness** – Must not be unreasonable or immoral.
5. **Acceptance by Society** – Must be recognized as binding by the community.
6. **Obligation** – It creates a legal obligation or duty.

Kinds of Custom

1. **General Custom** – Observed by the whole society (e.g., property rights under Hindu law).
2. **Local Custom** – Observed in a particular area or community (e.g., customs of tribal communities).
3. **Custom in Trade/Profession** – Regulates specific professions or industries (e.g., mercantile practices).
4. **Religious Custom** – Derived from religious practices (e.g., Hindu marriage customs, Muslim inheritance rules).

Custom in India

- Recognized under **Section 13 of the Indian Evidence Act, 1872** (for proof of custom).
- Courts recognize customs as **law if they are ancient, certain, reasonable, and not contrary to statutory law**.
- Examples:
 - *Madhavrao v. Raghunath (1928)* – Hindu marriage customs recognized.
 - Tribal customs like inheritance or land rights are recognized under personal laws.

Limitations

- Cannot override **statutory law** or the **Constitution**.
- Some customs may become obsolete.
- May conflict with social justice or equality principles.

(ii) Judicial Precedent (Case Law)

Definition: Judicial precedent refers to **legal principles laid down by courts in earlier cases**, which **must be followed in subsequent cases of similar facts**.

Also called “**Doctrine of Stare Decisis**”, meaning:

“To stand by things decided.”

Justice John Salmond:

“Judicial decisions form a source of law when courts recognize them as binding in future cases.”

Characteristics

1. **Binding nature** – Higher courts’ decisions bind lower courts.
2. **Consistency** – Ensures uniformity in law.

3. **Flexibility** – Can be modified by higher courts if circumstances change.
4. **Reasoned judgments** – Must be well-reasoned to be followed as precedent.

Kinds of Judicial Precedent

1. **Binding Precedent (Mandatory)**
 - Decisions of superior courts that lower courts must follow.
 - Example: Supreme Court decisions bind all High Courts in India.
2. **Persuasive Precedent**
 - Decisions of courts not strictly binding but may influence courts.
 - Example: Decisions of courts of another state, foreign courts, or lower courts.
3. **Original Precedent**
 - When a court establishes a principle for the first time in a novel situation.
4. **Declaratory Precedent**
 - Interprets existing law and clarifies its meaning.

➤ Judicial Precedent in India

- Recognized under **Common Law System**, inherited from British rule.
- **Supreme Court**: Its judgments are binding on all lower courts.
- **High Courts**: Decisions bind subordinate courts in their respective jurisdictions.
- Examples:
 - *Kesavananda Bharati v. State of Kerala (1973)* – Established the Basic Structure Doctrine.
 - *Maneka Gandhi v. Union of India (1978)* – Expanded Article 21 interpretation.

Advantages

1. Ensures **stability and predictability** in law.
2. Promotes **uniform application** of legal principles.
3. Allows law to **evolve gradually**.
4. Judges can **adapt legal principles to new social conditions**.

Disadvantages

1. May **freeze outdated law** due to rigid adherence.
2. Too much dependence may **reduce judicial creativity**.
3. Conflicting precedents may **cause confusion**.

➤ Legislation

Definition: Legislation refers to **laws made by a competent legislature** or law-making authority. It is also called **Statutory Law**.

Dicey:

“Legislation is the authoritative expression of the will of the State, binding on the people.”

Characteristics

1. **Authority** – Made by legislature with competent power.
2. **General application** – Applies to all citizens or class of persons.

3. **Express enactment** – Written and codified law.
4. **Binding nature** – Courts must enforce statutory provisions.
5. **Predictability** – Provides certainty in legal rights and obligations.

Kinds of Legislation

1. **Constitutional Law** – Laws in the Constitution (e.g., Fundamental Rights, Directive Principles).
2. **Ordinary Statutes** – Enacted by Parliament or State Legislatures (e.g., Indian Penal Code, 1860).
3. **Delegated Legislation** – Made by authorities other than legislature under statutory powers (e.g., Rules, Regulations, By-laws).

Legislation in India

- **Parliament** – Union laws.
- **State Legislatures** – State laws.
- **Local bodies / Executive authorities** – Delegated legislation.
- Examples:
 - **Indian Penal Code, 1860** – criminal law.
 - **Code of Civil Procedure, 1908** – civil procedural law.
 - **Consumer Protection Act, 2019** – social welfare legislation.

Advantages

1. Provides **certainty and clarity**.
2. Uniformly applicable to all citizens.
3. Can **reform and modernize** law according to social needs.
4. Reflects **will of the people** through elected representatives.

Disadvantages

1. May be **rigid** compared to customs or judicial interpretation.
2. May **lag behind social changes**.
3. Poorly drafted laws can lead to **ambiguities**.

Conclusion

- **Custom** → Old, traditional, socially accepted practices, sometimes informal but legally binding.
- **Judicial Precedent** → Court-made law; ensures continuity, stability, and evolution of law.
- **Legislation** → Written, formal, authoritative law; provides certainty and reflects collective will.

In India, all three sources **co-exist**:

- Custom is recognized under personal laws.
- Judicial precedent ensures uniform interpretation.
- Legislation provides codified law and social reforms.

UNIT IV – CONCEPTS OF LAW

➤ Ownership (Property/Title)

Definition: Ownership is the **legal right to possess, use, enjoy, and dispose of a thing**. It gives the owner **exclusive control** over a thing, subject to the law.

Salmond's Definition:

“Ownership is the right to enjoy and dispose of a thing in the fullest possible manner.”

Characteristics of Ownership

1. **Right to Use (Usus):**
Owner can use the property as desired.
2. **Right to Enjoy (Fructus):**
Owner can enjoy the benefits or profits from the property.
3. **Right to Dispose (Abusus):**
Owner can transfer, sell, gift, or destroy the property.
4. **Exclusive Right:**
Ownership is **exclusive**, i.e., others cannot interfere.
5. **Perpetual:**
Ownership generally continues indefinitely until voluntarily transferred or legally taken away.

Types of Ownership

1. **Private Ownership** – Owned by an individual or private entity.
2. **Public/State Ownership** – Owned by the government (e.g., public parks).
3. **Joint Ownership** – Owned by multiple persons (e.g., joint family property).

Ownership vs Possession

- **Ownership** = Right in law; ultimate title.
- **Possession** = Physical control over a thing.
Example: A tenant possesses the property, but the landlord owns it.
- **(b) Possession**

Definition: Possession refers to **actual physical control over a thing**, whether or not the person is the owner.

Salmon: “Possession is the holding or control of a thing with or without ownership.”

Characteristics of Possession

1. **Physical Control:**
The person must have actual control or dominion over the thing.
2. **Intention (Animus Possidendi):**
The possessor must intend to hold the thing as his own.
3. **Exclusive Possession:**
Others should not interfere unlawfully.
4. **Continuity:**
Possession should be continuous and uninterrupted.

Kinds of Possession

1. **Lawful Possession:**
 - Possession with the owner’s consent or legal right.
 - Example: Tenant in rented house.
2. **Unlawful Possession:**
 - Possession without legal right.
 - Example: Trespasser, thief.

Possession vs Ownership

- Possession may or may not indicate ownership.

- Ownership always implies the **right to possess**, but possession does not always imply ownership.

Importance of Possession

1. Protection under law (e.g., criminal law recognizes unlawful dispossession as theft).
2. Basis for acquiring ownership in certain cases (e.g., **adverse possession**).
3. Helps courts resolve property disputes.

➤ (c) Rights and Duties

➤ Rights

Definition: A right is a **legal entitlement or claim** recognized by law, which the holder can enforce against others or the state.

Salmon:

“A right is a power or faculty recognized and protected by law to act or refrain from acting in a certain manner.”

Characteristics of Rights

1. **Legal Recognition:** Must be recognized by law.
2. **Claim or Entitlement:** Holder can demand fulfillment.
3. **Opposable to Others:** Rights impose duties on others.
4. **Protected by Law:** Courts provide remedy for infringement.

Kinds of Rights

1. **Natural Rights:**
 - Rights inherent to human beings (e.g., Right to life, liberty).
 - Example: Fundamental Rights under Indian Constitution.
2. **Legal Rights:**
 - Created and enforced by law (e.g., Right to property, Right to vote).
3. **Public Rights:**
 - Held against society or the State (e.g., Right to education).
4. **Private Rights:**
 - Held against an individual (e.g., Right to recover debt).

➤ Duties

Definition: A duty is a **legal or moral obligation** imposed on a person to act or refrain from acting in a particular way.

Salmon:

“Every right implies a corresponding duty.”

Characteristics of Duties

1. **Correspondence to Rights:**
 - Duties exist because rights exist.
2. **Enforceable by Law:**
 - Some duties are legal (e.g., paying taxes).
3. **Moral and Social Duties:**
 - Some duties are moral or ethical (e.g., duty to respect parents).

Kinds of Duties

1. **Legal Duties:**

- Imposed and enforceable by law (e.g., duty to pay rent).

2. **Moral Duties:**

- Not legally enforceable but socially binding (e.g., duty to help the needy).

3. **Public Duties:**

- Duties owed to society (e.g., duty not to pollute environment).

4. **Private Duties:**

- Duties owed to an individual (e.g., duty to deliver goods under a contract).

Example:

Right: Right to property → **Duty:** Others must not trespass or steal it.

➤ **(d) Personality (Legal Personality)**

Definition

Legal personality is the **capacity to have legal rights and duties**.

It distinguishes **persons recognized by law** from things.

Salmon:

“A legal personality is any entity capable of possessing rights and duties under law.”

Characteristics of Legal Personality

1. **Recognition by Law:**

- Must be recognized as a legal entity.

2. **Ability to Hold Rights and Duties:**

- Can own property, enter contracts, sue, or be sued.

3. **Can be Natural or Artificial:**

- Natural Person = Human beings.
- Artificial Person = Corporations, companies, the State.

Kinds of Legal Personality

1. **Natural Persons:**

- Human beings from birth (legal capacity may arise at birth).

2. **Juristic/Artificial Persons:**

- Created by law (e.g., Companies Act, 2013).
- Have rights and duties independent of their members.
- Example: **State, Corporations, Universities.**

Importance

1. Determines **who can sue or be sued**.
2. Distinguishes between **subject and object** of law.
3. Enables collective entities to function in legal matters (e.g., companies holding property).

Conclusion

- **Ownership** → Right to control, use, and dispose of property.
- **Possession** → Physical control over property, may or may not imply ownership.
- **Rights and Duties** → Legal entitlements and obligations recognized and enforced by law.

- **Personality** → Legal capacity to hold rights and duties; includes both natural and artificial persons.

These concepts form the foundation of legal studies, helping understand **property, contract, tort, and constitutional law**.

THEORIES OF PUNISHMENT

Punishment is a **penalty imposed by law** for committing a crime.

Theories of punishment explain **why society punishes criminals** and the **purpose of punishment**.

Punishment serves as **deterrence, reformation, or revenge** depending on the theory.

1. Definition of Punishment

Salmon:

“Punishment is the deliberate infliction of pain or suffering by the State on a person for a crime committed by him.”

Indian Penal Code (IPC) Sec. 53 defines punishment as:

“The punishment of offences may be death, imprisonment, forfeiture of property, fine, etc.”

Key points:

1. Punishment is **legally imposed**.
2. It is **for a wrongful act**.
3. Inflicted **by authority of the State**.

2. Theories of Punishment

Punishment theories are broadly classified into **four main schools**:

(i) Retributive or Classical Theory (Also called Absolute Theory)

Concept

- Punishment is a **just desert** — the criminal deserves to be punished.
- It is **moral and backward-looking**; focuses on **punishing the wrongdoer**, not on social benefit.

Key Features

1. Punishment is **an end in itself**, not a means.
2. Emphasizes **justice and fairness**.
3. Proportionality: Punishment should match the gravity of the crime.

Exponents

- **Immanuel Kant** – Punishment is a duty of the State; criminals must be punished because they deserve it.
- **G.W.F. Hegel** – Punishment restores moral balance.

Advantages

- Upholds **moral justice**.
- Satisfies society's **sense of retribution**.

Disadvantages

- Ignores **deterrence or rehabilitation**.
- May not prevent crime.

Indian Context

- **Death penalty for murder** – reflects retributive principle.
- IPC Sec. 302 (Murder) – punishment as desert.

(ii) Deterrent or Utilitarian Theory

Concept

- Punishment is justified **only if it prevents future crime**.
- It is **forward-looking**, aiming at **detering the offender and society**.

Key Features

1. Punishment is a **means to social good**.
2. Types of deterrence:
 - **Specific deterrence** – Prevents the offender from repeating crime.
 - **General deterrence** – Deters society at large.

Exponents

- **Jeremy Bentham** – Punishment should maximize **utility** by preventing crime.

Advantages

- Focus on **crime prevention**.
- Reduces **recidivism**.

Disadvantages

- May lead to **excessive or harsh punishment** to intimidate.
- Ignores **moral blameworthiness**.

Indian Context

- **Imprisonment for theft** – deterrence principle.
- Example: Section 379 IPC – theft punishable to deter similar acts.

(iii) Reformatory or Preventive Theory

Concept

- Punishment aims to **reform the criminal** so he becomes a law-abiding citizen.
- Focuses on **rehabilitation rather than vengeance**.

Key Features

1. Emphasizes **education, training, and social reintegration**.
2. Punishment is **corrective, not merely punitive**.
3. Applicable mostly to **juveniles and first-time offenders**.

Exponents

- **John Stuart Mill** – Emphasized correction and social usefulness.
- Modern criminologists support reformation over revenge.

Advantages

- Reduces **recidivism**.
- Promotes **humanitarian approach**.

Disadvantages

- May **not satisfy societal demand for justice**.
- Reformation may fail if offender resists change.

Indian Context

- **Juvenile Justice (Care and Protection of Children) Act, 2015** – emphasizes reformative approach.
- Probation and parole system – rehabilitative purpose.

(iv) Preventive Theory

Concept

- Punishment is designed to **prevent future crimes** by incapacitating the criminal.
- Focus on **social protection**, not desert or reform.

Key Features

1. Society is **protected from dangerous criminals**.
2. Includes imprisonment, banishment, or death in extreme cases.

Exponents

- Modern criminologists and some Utilitarians support it as a **practical approach**.

Advantages

- Ensures **public safety**.
- Acts as **direct preventive measure**.

Disadvantages

- Ignores moral aspects.
- May lead to **over-punishment of potentially dangerous persons**.

Indian Context

- Life imprisonment – to protect society from hardened criminals.

3. Summary Table: Theories of Punishment

Theory	Concept	Purpose	Exponent(s)	Example in India
Retributive	Punish because offender deserves	Justice for crime	Kant, Hegel	Death penalty under Sec. 302 IPC
Deterrent	Punish to prevent future crime	Prevention	Bentham	Theft punishment, Sec. 379 IPC
Reformative	Reform the offender	Rehabilitation	John Stuart Mill	Juvenile Justice Act, 2015
Preventive	Protect society from offender	Social protection	Modern Criminologists	Life imprisonment

4. Conclusion

- Theories of punishment reflect **different philosophies** about crime and justice.
- Modern Indian law incorporates a **mix of all four**:
 - Death penalty (Retributive),
 - Imprisonment (Deterrent/Preventive),
 - Juvenile/Probation system (Reformative).
- The aim is to **balance justice, public safety, deterrence, and reformation**.

-Abhishek Chaudhary